

Present: Shri Hari Kishan learned Special Public Prosecutor for SFIO along with Sh. Lokender Singh Raghav, Standing Government Counsel for SFIO.

Accused Nos. 115 and 140 on interim bail granted by Hon'ble Apex Court vide orders dated 17.12.2020 and 29.10.2021 respectively.

Accused Nos. 146, 147, 149, 150, 154, 158, 159, 161, 166, 171, 176, 179, 182 to 186 in person being on bail.

Accused nos. 178 in person being granted interim protection by Hon'ble High Court vide order dated 10.08.2020, which has been continued vide last order dated 07.02.2022 till 04.04.2022.

Accused nos. 144, 145, 148, 151 on bail but granted personal exemption till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Nos. 156 and 157 on bail but exempted from personal appearance till further order vide order 31.01.2020, represented through Shri Piyush Jain, Advocate.

Accused Nos. 163 and 164 on bail but exempted from appearance for today only, represented through Shri Neeraj, Advocate.

Accused Nos. 167, 168, 169 on bail but granted permanent exemption) vide order dated 04.09.2019, represented through Shri Rakesh Kumar, Advocate.

Accused No. 174 on bail but granted personal exemption till further order vide order dated 19.02.2021, represented through Shri Dinesh Kumar, Advocate.

Accused Nos. 180, 181 on bail but granted personal exemption till further orders vide order 22.11.2019, represented through Shri Manish, Advocate.

Accused Nos. 1 to 70, companies, represented through accused Rahul Modi (123) in custody in jaipur jail.

Accused Nos. 71 to 78 , companies, represented through accused Sidharth Chauhan (135) against whom PO proceedings initiated today.

Accused No. 79 , company represented through accused Vivek Hari Vyas (115) presently on interim bail granted by Hon'ble apex Court vide order dated 17.12.2020

Accused Nos. 80, company, represented through accused Naveen Kumar (139) against whom PO proceedings are initiated today

Accused Nos. 81 and 82, companies, represented through accused Surender Singh (140) who is on interim bail granted by Hon'ble Apex Court vide order dated 29.10.2021.

Accused Nos. 84, company, represented through accused Abhya K. Shah (127) against whom PO proceedings initiated today.

Accused Nos. 85, company, represented through accused Jainam Rathod (130) who is in custody in Bhondsi Jail

Accused Nos. 86, 87 and 88 , companies, represented through AR Ravi Kumar Tak, AR (166) on bail in person

Accused No. 89 , company, represented through accused Raj Kumar Bohra (171) on bail in person.

Accused Nos. 90 to 93, companies, represented through accused Vivek Hari Vyas (115), on interim bail granted by Hon'ble Apex Court vide order 17.12.2020

Accused Nos. 94 to 97 , companies, represented through Shri Rahul, AR, in person

Accused Nos. 98 , company, represented through Shri Naresh Kumar, AR, in person

Accused Nos. 99 and 100 , companies, represented through accused Raj Kumar Modi.(176) on interim bail granted by Hon'ble apex Court vide order 16.08.2021

Accused No. 101, company, represented through Shri Abhishek, AR, in person

Accused No. 102, company, represented through Shri Deepak, AR , in person
Accused No. 103, company, represented through Shri Dharmender, AR , in person
Accused No. 104 , company, represented through Shri Pawan Sharma, AR , in person
Accused No. 105 , company, represented through Shri Anup AR , in person
Accused No. 106, company, represented through Shri Kashi Nath Jha, AR , in person
Accused No. 107. compnay, represented through Shri Fateh Singh, AR , in person
Accused No. 108, company, represented through Shri Ranjan Kumar, AR , in person
Accused No. 109, company, represented through Shri Vikas Paul, AR , in person
Accused Nos. 110, company, represented through Shri Raju Yadav, AR , in person
Accused No. 111 company, represented through Shri Ritik Sharma, AR , in person
Accused Nos. 112, company, represented through Shri Devender, AR, in person
Accused No 113 is not produced by Jaipur Jail authorities as he is shifted to Hanumangarh Jail
Accused nos. 114,120,122,123,125,126,131,134,142 are not produced by Jaipur Jail authorities as they are shifted to Jodhpur Jail
Accused Nos. 130 in custody produced through VC from Bhondsi Jail
Proceedings against Mehnder Kumar Tak (155) and Vijay Kumar Tak (175) stands abetted since expired

None for the accused Nos. 83,124,132.155,175 and 187.

All the presence of the accused is indicated in the manner described above.

Accused No. 130 Jainam Rathore is produced through video conferencing from Bhondsi jail.

Accused namely Mukesh Modi (113) not produced by Jaipur Jail authorities as he is confined in Hanumangarh jail. Let, the production warrant of accused Mukesh Modi (113) be issued to Superintendent, Hanumangarh Jail for **02.07.2022** for appearance of accused through VC.

Accused namely Rahul Modi (114), Vaibhav Lodha (120), Virender Modi (122), Rohit Modi (123), Rajeshwar Singh (125), Bharat Modi (126), Ishwar Singh Sindal (131), Vivek Purohit (134), Bharat Das Vaishnav (142) are not produced through Video Conferencing from Jaipur Jail as are confined in Jodhpur Jail. Let, the production warrants of accused Rahul Modi (114), Vaibhav Lodha (120), Virender Modi (122), Rohit Modi (123), Rajeshwar Singh (125), Bharat Modi (126), Ishwar Singh Sindal (131), Vivek Purohit (134), Bharat Das Vaishnav (142) be issued to the Superintendent, Jodhpur Jail for **02.07.2022** for appearance of accused through VC.

Accused namely Vivek Harivvysi (115), Surender Singh (140), Raj Kumar Modi (176) are on interim bail granted by the Hon'ble Supreme Court vide orders dated 17.12.2020, 29.10.2021 and 16.08.2021 respectively.

Accused namely Vijay Shukla (149) has been granted interim protection by the Hon'ble Supreme Court vide order dated 26.10.2021. Accused present in person.

Accused No. 117 Priyanka Modi on regular bail in terms of order dated 07.02.2022 passed by the Hon'ble Supreme Court.

Non-bailable-warrant issued against accused No. **116** namely **Nitin Rathore**, is received back unexecuted with the report that he has **left the address given**. As per learned Public Prosecutor, there is no other address available and it was last known address of the accused. Further, his anticipatory bail application has already been dismissed by this Court vide order dated 15.11.2019. He further requested to proceed under section 82 Cr.P.C. against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this Court for dated **03.06.2019**, **30.07.2019** and then non-bailable warrants were issued for **04.09.2019**, **03.10.2019**, **19.10.2019**, **22.11.2019**,

17.12.2019, 31.01.2020, 24.09.2020, 15.01.2021, 19.02.2021, 04.08.2021 and last on dated 08.09.2021. Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal oneself to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long for no fault of theirs, as trial is getting prolonged for want of presence of these accused. In view of these observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution. Thus, to procure his presence, proclamation is required to be made under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Nitin Rathore** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on **07.05.2022**. In case, the accused do not appear on dt. **02.07.2022** after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused Nos. **118** namely **Jinender Vyas** , received back unexecuted with the report that he has **left the address given**. As per learned Public Prosecutor, there is no other

address available and it was last known address of the accused. Further, his anticipatory bail application has already been dismissed by this court vide order dated 24.09.2019. He further requested to proceed under section 82 Cr.P.C. against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then non-bailable-warrants were issued for **24.09.2019**, **03.10.2019**, **19.10.2019**, **02.11.2019**, **22.11.2019**, **17.12.2019**, **31.01.2020**, **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021**. Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus, to procure his presence proclamation is required under section 82 Cr.P.C. Let,, proclamation under section 82 Cr.P.C. against accused **Jinender Vyas** be issued for **02.07.2022** to seek his appearance in

the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on **07.05.2022**. In case, the accused do not appear on dt. **02.07.2022** after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused No. **119** namely **Vinay kumpawat**, is received back unexecuted with the report that he has **left the address given**. As per Learned Public Prosecutor there is no other address available and it was last known address of the accused. Further his anticipatory bail application has already been dismissed by Hon’ble High Court vide order dated 20.03.2019. He further requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then Non-bailable-warrants were issued for **04.09.2019**, **03.10.2019**, **19.10.2019**, **22.11.2019**, **17.12.2019**, **31.01.2020**, **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021**. Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal oneself to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of

this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Vinay Kumpawat** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on **07.05.2022**. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused No. **121** namely **Paras Bolia**, is received back unexecuted with the report that he has **left the address given**. As per Learned Public Prosecutor there is no other address available and it was last known address of the accused. Further his anticipatory bail application has already been dismissed by this court vide order dated 08.07.2020, and the said bail application also mention the same address as mention in the complaint. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then non-bailable-warrants were issued for **04.09.2019**, **03.10.2019**, **19.10.2019**, **02.11.2019**, **24.09.2020**, **15.01.2021**,

19.02.2021, 04.08.2021 and last on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Paras Bolia** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused Nos. **127** namely **Abhay K. Shah**, is received back unexecuted with the report that **house found locked since long**. As per learned Public Prosecutor, there is no other address available and it was last known address of the accused.

Further, his anticipatory bail application has already been dismissed by this court vide order dated 23.09.2019, and the said bail application also mention the same address as mentioned in the complaint. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despiteailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**,ailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then Non-ailable-warrants were issued for **23.09.2019**, **03.10.2019**, **19.10.2019** , **22.11.2019**, **31.01.2020**, **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021**. Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal oneself to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Abhay K. Shah** be

issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Learned counsel for accused Abhay K. Shah requested this Court not to proceed for proclamation as his prayer is pending before Hon’ble High Court but there is no stay of the present proceedings. Heard. Since, there is no stay of the present proceedings, this Court is bound to proceed with the trial in accordance with law and accused, if has any relief to take from this Court, must surrender to the jurisdiction of this Court, which he has not done till date and his counsel, it being not a civil proceedings, cannot represent his case without the accused joining the proceedings in person particularly when this court has not granted exemption from appearance.

Non-bailable-warrant issued against accused No. **128** namely **Manish Chaudhary** , received back unexecuted with the report that as per his wife the accused was not **available at home**. As per learned Public Prosecutor, there is no other address available and it was last known address of the accused. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then non-bailable-warrants were issued for **04.09.2019**, **03.10.2019**, **19.10.2019**, **22.11.2019**, **17.12.2019**, **31.01.2020**, **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as

Phalit Sharma
Additional Sessions Judge,
Gurugram. (UID Nos. HR105)
25.03.2022.

unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Manish Chaudhary** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused No. **129** namely **Deepak Shrimali** received back unexecuted with the report that as per her mother the accused was **not available at home**. As per learned Public Prosecutor there is no other address available and it was last known address of the accused. Further the said accused has been appearing and also filed the reply under his signature in proceedings initiated by the complainant

before NCLT Delhi, which also having same address mentioned in the compalinant. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then non-bailable-warrants were issued for **04.09.2019**, **03.10.2019**, **19.10.2019**, **22.11.2019**, **17.12.2019**, **31.01.2020**, **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Deepak Shrimali** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to

come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused No. **133** namely **Prakash Chandra Purohit**, is received back unexecuted with the report that **house was locked since long** . As per learned Public Prosecutor, there is no other address available and it was last known address of the accused. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then non-bailable-warrants were issued for **04.09.2019**, **03.10.2019**, **19.10.2019**, **22.11.2019**, **17.12.2019**, **31.01.2020**, **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating

the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Prakash Chandra Purohit** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused Nos. **135** namely **Sidharth Chauhan**, is received back unexecuted with the report that he has **Left the address given**. As per learned Public Prosecutor, there is no other address available and it was last known address of the accused. Further his anticipatory bail application has already been dismissed by this court vide order dated 01.08.2019, and the said bail application also mention the same address as mentioned in the complaint. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C. against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then Non-bailable-warrants were issued for **04.09.2019**, **03.10.2019**, **19.10.2019**, **22.11.2019**, **17.12.2019**, **31.01.2020**, **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021** Now, latest warrant of arrest issued against the

accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Sidharth Chauhan** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused Nos. **136** namely **Akshat Singh**, is received back unexecuted with the report that he has **left the address given**. As per learned Public Prosecutor, there is no other address available and it was last known address of the accused. Ld. Public Prosecutor further submits that the said accused has earlier approached this Court by way of bail application No. BA/3535/2021 and the same was

dismissed as withdrawn on 15.12.2021. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then non-bailable-warrants were issued for **04.09.2019**, **03.10.2019**, **19.10.2019**, **22.11.2019**, **17.12.2019**, **31.01.2020**, **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Akshat Singh** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his

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statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused No. **137** namely **Shinder Pal Singh**, is received back unexecuted with the report that he has **left the address given**. As per Learned Public Prosecutor there is no other address available and it was last known address of the accused. Further his anticipatory bail application has already been dismissed by this court vide order dated 13.09.2019, and the said bail application also mention the same address as mentioned in the complaint. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then non-bailable-warrants were issued for **13.09.2019**, **03.10.2019**, **19.10.2019**, **22.11.2019**, **17.12.2019**, **31.01.2020**, **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the

presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Shinder Pal Singh** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused No. **138** namely **Gurbir Singh Sandhu**, is received back unexecuted with the report that he has **left the address given**. As per Learned Public Prosecutor there is no other address available and it was last known address of the accused. Further his anticipatory bail application has already been dismissed by this court vide order dated 13.09.2019, and the said bail application also mention the same address as mentioned in the complaint. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then Non-bailable-warrants were issued for **13.09.2019**, **03.10.2019**, **19.10.2019**, **22.11.2019**, **17.12.2019**, **31.01.2020**, **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last

on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Gurbir Singh Sandhu** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused No. **139** namely **Naveen Kumar**, is received back unexecuted with the report that **no such person resides at the address given**. As per Learned Public Prosecutor there is no other address available and it was last known address of the

accused. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then Non-bailable-warrants were issued for **04.09.2019**, **03.10.2019**, **19.10.2019**, **22.11.2019**, **17.12.2019**, **31.01.2020**, **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Naveen Kumar** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation

against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused No. **141** namely **Aditya Sarda, not received back either executed or unexecuted.** As per learned Public Prosecutor, there is no other address available and it was last known address of the accused. Further, his anticipatory bail application has already been dismissed by this court vide order dated 08.07.2020 and the said bail application also mention the same address as mentioned in the complaint. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019, 30.07.2019** and then non-bailable-warrants were issued for **03.10.2019 04.09.2019, 24.09.2020, 15.01.2021, 19.02.2021, 04.08.2021** and last on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating

the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Aditya Sarda** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Learned Counsel for accused Aditya Sarda has moved an application seeking exemption from appearance of the accused within the meaning of section 205 Cr.P.C read with Section 317 Cr.P.C. but this Court is not inclined to allow this exemption application particularly when this Court has initiated proclamation proceedings against the accused whose appearance before the Court is must and after joining the proceedings he can apply for the relief whichever he wants but certainly without joining the proceedings in this case wherein issue of thousand crores of rupee’s fraud is involved, he cannot be permitted to misuse the process of law execution of which he is conveniently avoiding so far.

Non-bailable-warrant issued against accused No. **143** namely **Sudhir Punia**, received back unexecuted with the report that he has **left the address given**. As per Learned Public Prosecutor, there is no other address available and it was last known address of the accused. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has

gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then non-bailable-warrants were issued for **04.09.2019**, **03.10.2019**, **19.10.2019**, **22.11.2019**, **17.12.2019**, **31.01.2020**, **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Sudhir Punia** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on **07.05.2022**. In case, the accused do not appear on dt. **02.07.2022** after publication of proclamation, he shall be declared “proclaimed person” and

not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused No. **152** namely **Nazima Khan**, received back unexecuted with the report that the accused was **not available at home**. As per learned Public Prosecutor, there is no other address available and it was last known address of the accused. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019, 30.07.2019, 04.09.2019, 03.10.2019** and then **19.10.2019** and then **02.11.2019, 22.11.2019, 17.12.2019, 31.01.2020, 24.09.2020, 15.01.2021, 19.02.2021, 04.08.2021** and then non-bailable-warrants were issued for dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the

accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Nazima Khan** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused Nos. **153** namely **Shabir Khan**, received back unexecuted with the report that **as per Chowkidar the accused was not at home**. As per learned Public Prosecutor, there is no other address available and it was last known address of the accused. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019, 30.07.2019, 04.09.2019, 03.10.2019, 19.10.2019, 02.11.2019, 22.11.2019, 17.12.2019, 31.01.2020, 24.09.2020, 15.01.2021, 19.02.2021, 04.08.2021** and then Non-bailable-warrants were issued for dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused

warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Shabir Khan** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused No. **160** namely **Shiv Raj Sharma**, received back unexecuted with the report that as per brother of the accused later was **not at home**. As per Learned Public Prosecutor there is no other address available and it was last known address of the accused. Further the said accused has moved this Court twice seeking relief of anticipatory bail application and same was dismissed as withdrawn by the accused vide orders dated 26.06.2020 and 23.02.2021 respectively. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**,

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bailable warrants were issued by learned predecessor of this court for dated **03.06.2019, 30.07.2019** and then non-bailable-warrants were issued for **04.09.2019, 24.09.2020, 15.01.2021, 19.02.2021, 04.08.2021** and last on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Shiv Raj Sharma** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused No. **162** namely **Naveen Chaudhary, not received back either served or unexecuted.**

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As per Learned Public Prosecutor, there is no other address available and it was last known address of the accused. Further, his anticipatory bail application has already been dismissed by this Court vide order dated 21.12.2019 and the said bail application also mention the same address as mentioned in the complaint. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then non-bailable-warrants were issued for **04.09.2019**, **03.10.2019**, **19.10.2019**, **22.11.2019**, **17.12.2019**, **31.01.2020**, **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required

under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Naveen Chaudhary** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused Nos. **165** namely **Shyam Bihari Gupta**, received back unexecuted with the report that as per **gardener the accused was not available at home**. As per learned Public Prosecutor, there is no other address available and it was last known address of the accused. Further his anticipatory bail application has already been dismissed by this Court vide order dated 20.08.2020, and the said bail application also mention the same address as mentioned in the complaint. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019, 30.07.2019** and then Non-bailable-warrants were issued for **24.09.2020, 15.01.2021, 19.02.2021, 04.08.2021** and last on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under

section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Shyam Bihari Gupta** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused No. **170** namely **Sudhir Mehta**, received back unexecuted with the report that the **house is locked since long**. As per Learned Public Prosecutor there is no other address available and it was last known address of the accused. Further his anticipatory bail application has already been dismissed by this Court vide order dated 20.08.2020, and the said bail application also mention the same address as mentioned in the complaint. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were

issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then Non-bailable-warrants were issued for **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021**. Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Sudhir Mehta** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared "proclaimed person" and not "proclaimed offender" as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused Nos. **172** namely **Saurabh Tak**, received back unexecuted with the report that the accused

has **left the address**. As per Learned Public Prosecutor there is no other address available and it was last known address of the accused. Further his anticipatory bail application has already been dismissed by this Court vide order dated 20.08.2020. Further the accused has also filed quashing petition before Hon'ble High Court bearing Nos. CRM-M-21179 of 2020 in which same address is mentioned as mentioned in complaint. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despiteailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**,ailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then Non-ailable-warrants were issued for **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his

presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Saurabh Tak** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused Nos. **173** namely **Peeyush Aggarwal**, received back unexecuted with the report that as per his wife the **accused was not available at home**. As per learned Public Prosecutor, there is no other address available and it was last known address of the accused. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then Non-bailable-warrants were issued for **04.09.2019**, **03.10.2019**, **19.10.2019**, **22.11.2019**, **17.12.2019**, **31.01.2020**, **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of

arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Peeyush Aggarwal** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Non-bailable-warrant issued against accused No. **177** namely **Rajeev Kumar Rana**, received back unexecuted with the report that **the accused was not available at home**. As per learned Public Prosecutor, there is no other address available and it was last known address of the accused. Further his anticipatory bail application has already been dismissed by this Court vide order dated 21.07.2020, and the said bail application also mention the same address as mentioned in the complaint. Further, this Court, vide order dated 22.09.2021, has already dismissed an application filed by the accused seeking cancellation of NBW issued against him and also rejected his prayed seeking exemption from the personal appearance. Learned Public Prosecutor has requested to proceed under section 82 Cr.P.C against the accused who has been avoiding his presence w.e.f. **03.06.2019** despite bailable warrants and then issuance of warrant of arrest. This Court has gone through the record of the file which indicates that in respect of the

accused, after passing summoning order on dated **03.06.2019**, bailable warrants were issued by learned predecessor of this court for dated **03.06.2019**, **30.07.2019** and then Non-bailable-warrants were issued for **04.09.2019**, **03.10.2019**, **19.10.2019**, **22.11.2019**, **17.12.2019**, **24.09.2020**, **15.01.2021**, **19.02.2021**, **04.08.2021** and last on dated **08.09.2021** Now, latest warrant of arrest issued against the accused is received with the noting as unexecuted, which is the usual report received in respect of this accused on his earlier warrants. In the given circumstances, this court is satisfied that the accused has knowingly been avoiding his arrest before the Court by making one excuse or the other, may be in connivance with the concerned staff responsible for execution of warrants or his family members may be helping him to conceal one self to avoid arrest. Such conduct of accused warrants launch of proceedings under section 82 Cr.P.C. because further grant of adjournment to repeat the same process of issuance of warrant of arrest would not serve any purpose. Rather, it would delay the disposal of this complaint wherein to procure the presence of **24** accused, warrants of arrest are in issuance without any fruitful result. Otherwise also, repeating the same process unnecessarily would cause prejudice to the interest of accused already on bail or in custody since long as for no fault of theirs unnecessarily trial is getting prolonged for want of presence of these accused. In view of above observation, this court is satisfied that the accused is intentionally avoiding his arrest and concealing oneself to prevent prosecution, thus to procure his presence proclamation is required under section 82 Cr.P.C. Let, proclamation under section 82 Cr.P.C. against accused **Rajeev Kumar Rana** be issued for **02.07.2022** to seek his appearance in the Court on that day. The Executing Official is directed to come present in the court for making his statement regarding publication of proclamation against the accused on 07.05.2022. In case, the accused do not appear on dt. 02.07.2022 after publication of proclamation, he shall be declared “proclaimed person” and not “proclaimed offender” as the offences for

which the accused required, are not mentioned in the list of sections described in Section 82 (4) Cr.P.C.

Learned counsel for accused Rajiv Kumar Rana has moved an application seeking exemption from appearance of the accused on the ground of sickness of his father, but this Court is not inclined to allow this exemption application particularly when this Court has initiated proclamation proceedings against the accused whose appearance before the Court is must and after joining the proceedings he can apply for the relief whichever he wants but certainly without joining the proceedings in this case wherein issue of thousand crores of rupee's fraud is involved, he cannot be permitted to misuse the process of law execution of which he is conveniently avoiding so far.

Accused namely Megha Chauhan(163), Indu Tak (164), Ichchhita Dungarwal (180), Neha kataria (181), who are on bail, have sought exemption from appearance for today. Heard. In view of the contents of the application, all these accused are exempted from appearance for today only.

An application is moved on behalf of accused company Laxmi Kripa Buildcon (86), Ridhi Sidhi Infra Projects (87), Ridhi Sidhi Infra tech (88), with the prayer to substitute their authorize representative Sh. Jai Singh with Sh.Ravi Kumar Tak (166). Along with the application, a copy of resolution is attached. In view of the contents of the application, Ravi Kumar Tak (166) is allowed to be substituted as an AR of accused companies 86 to 88.

Death reports qua accused namely Mahender Kumar Tak (155) and Vijay Kumar Jindal (175) have been received with report that they have expired on 14.09.2020 and 01.05.2021 respectively. Accordingly proceedings qua the said accused namely Mahender Kumar Tak (155) and Vijay Kumar Jindal (175) stand abetted.

Death report qua accused namely Mahesh Kumar Tak (187) has not been received. At this stage, Ld. Special Public Prosecutor has submitted in writing that this accused is alive but intentionally not

appearing before this court despite rejection of his anticipatory bail on 20.08.2020. In view of the facts stated by learned Special Public Prosecutor, since, accused Mahesh Kumar Tak (187) has intentionally been not appearing before the court despite his knowledge of summoning and in garb of claim of his death, he has been avoiding proceedings, let his presence for **02.07.2022** be procured through issuance of warrants to be got executed through special messenger.

Learned Public Prosecutor has also submitted in writing that though earlier, Hon'ble Rajasthan High Court vide its order dated 20.12.2019 in the matter of CWP-21622 of 2019, had directed that no coercive action be taken against accused namely Neha Gemawat (124) and Meenakshi Modi (132), at the stage when warrants of arrest were in issuance, now Hon'ble Rajasthan High Court vide its order dated 24.03.2022, has vacated the said interim order, hence, prayed to issue warrants of arrest of both accused to procure their presence. In view of the statement given in writing by the learned Special Public Prosecutor, let presence of accused Neha Gemawat (124) and accused Meenakshi Modi (132) be procured through warrants of arrest for **02.07.2022**, only after filling of certified copy of order of Hon'ble Rajasthan High Court at the earliest by learned Special Public Prosecutor.

Learned Special Public Prosecutor has further informed that there are ten accused namely Ajit Singh Rathore (150), Ram Lal Arya (158), HemantKumar Jain (159), Parveen Kumar (161), Damayanti Bhandari (179), Nimesh Kumar Ramesh Soni (182), Ritu Raj Singh (183), Dushyant Singh Rathore (184) Shashank Singh Rathore (185) and Jitesh Kumar Parmar (186), who were granted bail by Hon'ble High Court on the ground that they shall co-operate with the prosecution, as approvers. He also intimated that applications of these ten accused are on record to this effect. He further requested to record their statements in accordance with law. Heard. In view of the directions issued by Hon'ble High Court, all the said accused are directed to remain present on **02.04.2022** for recording of

their respective statements as approvers. However, accused other than the one directed need not to appear on that day.

Since, none has appeared on behalf of accused No. 83 company despite service, in view of order dated 08.09.2021 of this Court. this Court is compelled to presume that compliance of sub-section 3 to sub-section 305 Cr.P.C. is not to be made in respect of the company (83) and if company (83) is finally found guilty, order shall be passed in accordance with law against it.

Date of order : 25.03.2022.
Rakesh SG-I

(Phalit Sharma)
Additional Sessions Judge,
Gurugram. [UID : HR0105]

Phalit Sharma
Additional Sessions Judge,
Gurugram. (UID Nos. HR105)
25.03.2022.